STANDARD OPERATING PROCEDURE			P-4010	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **04/07/21**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL	RESOURCES N.R.S. 60-6102 THROUGH 60-6104			
SUBJECT SERIOUS PERSONAL INJURY AND FATALITY TRAFFIC CRASHES	CROSS REFERENCE P-3900 DUI INVESTIGATIONS P-4000 TRAFFIC CRASH INVESTIGATION I-3110 ON-CALL INVESTIGATOR AU-9300 CRASH RESPONSE UNIT OPERATIONS AND TRAINING			

I. Purpose:

The purpose of this policy is to establish procedures for investigating serious personal injury and fatality traffic crashes and to establish procedures for the use of the Crash Response Unit.

II. Policy:

The Sarpy County Sheriff's Office shall conduct thorough investigations of crashes involving serious injuries or fatalities. The Sarpy County Sheriff's Office shall utilize deputies trained in crash reconstruction to ensure crashes of a serious nature are completely documented.

III. Definitions:

A. CRASH RECONSTRUCTIONIST: A deputy or other law enforcement officer who has completed all courses in crash investigation including Crash Reconstruction and who has completed the required certification tests.

B. SMCRT: South Metro Crash Response Team

C. CRU: Crash Response Unit (Sheriff's Office)

IV. Procedures:

A. Crash Investigation- Crash Response Unit (CRU) Required: The Crash Response Unit shall assist with all serious traffic crashes. Serious traffic crashes shall include the following:

1. All fatal crashes.

2. All personal injury crashes where the injuries are likely to be life threatening or CPR was in progress at the scene.

3. All hit and run crashes where life threatening injuries resulted.

4. Personal Injury crashes involving county vehicles.

5. Personally Injury crashes involving off-road vehicles (i.e. ATVs) where there is a fatality or the injuries are likely to be life threatening or CPR was in progress at the scene.

B. Serious Traffic Crash Investigation-Deputy Responsibilities:

1. The on-duty road patrol deputy originally assigned to the serious traffic crash shall complete the Investigator's Motor Vehicle Crash Report Form.

2. The originally assigned deputy shall be responsible for gathering all information required to complete the Crash Report and securing the scene prior to the arrival of the Crash Response Unit.

3. The originally assigned deputy shall be responsible for investigating any crimes related to the crash including: driving under the influence, driving under suspension or revocation, possession of controlled substances, etc.

4. The originally assigned deputy shall complete an incident report regarding the crash and any necessary arrest reports. Any assisting deputies on scene, regardless of his or her role, shall complete an incident report detailing their observations, involvement, and any other necessary information regarding the crash.

5. The assigned deputy shall draft a diagram on the final copy of the state report to satisfy the state requirements.

6. All vehicles shall be towed and a hold shall be placed for Crash Investigation. The lead Crash Response Unit Investigator shall be listed as the deputy requesting the hold.

C. Serious Traffic Crash Investigation- Crash Response Unit (CRU) Responsibilities:

1. If a CRU Member is on-duty and working a Road Patrol District, he/she shall respond to any serious personal injury or fatality crash and contact the CRU Team Leader to determine the need for activation of the CRU and/or SMCRT. (See AU-9300 Crash Response Unit Operations and Training).

2. The Lead Crash Response Unit Investigator shall be assigned according to the Crash Response Unit standard operation procedures detailed in AU-9300 Crash Response Unit Operations and Training.

3. The CRU shall be responsible for all photographs and measurements at the crash scene. Deputies are encouraged to take photographs of short-lived evidence prior to the CRU's arrival to a crash scene.

4. The CRU shall complete an investigation into the cause of the crash which may include: estimating speeds involved, identifying faulty equipment, identifying dangerous road conditions, etc.

5. The CRU shall complete a diagram of the crash.

6. The CRU shall complete a supplemental incident report regarding his or her investigation.

D. Serious Traffic Crash-Supervisor Responsibilities:

1. The on-duty shift supervisor shall respond to all fatality traffic crashes and crashes where the injuries are so severe that it appears a fatality may result.

2. The on-duty shift supervisor shall notify the on-duty watch commander or ADC regarding all fatal or potentially fatal traffic crashes.

3. The on-duty shift supervisor shall contact the Crash Response Unit Team Leader or refer to a CRU Team Member who is on-duty to determine the need for the Crash Response Unit to respond. The CRU Team Leader shall have the final authority to determine the need for the CRU or South Metro Crash Response Team (SMCRT). (See AU-9300)

4. The on-duty shift supervisor shall notify the Road Patrol Commander when CRU/SMCRT is requested. If the Road Patrol Commander is not available, the on-duty watch commander shall be notified.

5. The on-duty shift supervisor shall notify the on-call investigator (see I-1310). The on-call investigator shall respond to the scene (see section E below).

6. Blood Draws:

a) State statutes require a blood sample for alcohol testing be obtained from any deceased driver or pedestrian age 16 or over, if death occurs within four hours of the crash. The on-duty shift supervisor shall ensure that the on-call investigator or an assigned deputy goes to the appropriate medical facility and obtains a blood sample.

b) State statutes also require surviving drivers age 16 or over be requested to submit to a test for determination of alcohol content. The on-duty shift supervisors shall assign a deputy to accompany all surviving drivers to the hospital to obtain a blood sample. A breath sample can also be obtained utilizing proper preliminary breath test (PBT) procedures, if it is not feasible to obtain a blood sample.

(1) When there is no reason to believe the surviving driver(s) is under the influence of alcohol, the test shall be voluntary.

(2) If there is probable cause to believe the surviving driver(s) is under the influence, then the test shall proceed according to established DUI investigation guidelines (see P-3900 DUI Investigations).

c) The test results of such tests shall be reported in writing to the Director-State Engineer.

d) It is recommended that blood and/or urine samples be requested from any driver involved in an crash where there were injuries that may result in a fatality. If a driver is willing to submit to a voluntary blood and/or urine sample, the deputy shall complete a Permission for Search/Seizure form for the testing of the driver's blood.

7. If a crash resulted in a fatality, the on-duty shift supervisor shall contact Communications and provide the information regarding the crash to allow for a statewide teletype.

E. South Metro Crash Response Team (SMCRT):
The law enforcement agencies within the Omaha Metro Area, including the Sarpy County Sheriff's Office, participate in a response team to assist with the investigation and reconstruction of serious traffic crashes.

1. In the event of a serious traffic crash involving death and/or life threatening injuries, including any situation other than a one car/one driver crash where there is no question of others causing the crash, the Crash Response Unit shall be requested.

2. The Crash Response Unit may respond to a one car/one driver crash involving serious injuries. The need to activate the resources of the SMCRT is at the discretion of the Crash Response Unit Team Leader.

3. The on-duty shift supervisor shall notify the ADC.

4. The Crash Response Unit Team Leader shall contact the on-duty supervisor or CRU Member at the scene. The Crash Response Unit Team Leader will then

evaluate the need for the Crash Response Unit/SMCRT and direct dispatch to page the appropriate personnel.

5. The ADC shall also confirm that the on-call investigator will respond to the scene.

6. A Sheriff's Office Crash Response Unit Investigator shall be assigned as the lead SMCRT officer to ensure the crash is investigated thoroughly and that all documentation (reports, diagrams, etc.) is completed and submitted to the County Attorney's Office in a timely manner. A Sheriff's Office Crash Response Unit Investigator shall respond whenever possible to serious and fatality crashes in county jurisdiction to serve as the lead officer. If a Sheriff's Office Reconstructionist is not available, a SMCRT reconstructionist will be the lead officer and if needed may contact a Sheriff's Office Reconstructionist to resolve anything outstanding.